

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	17-07-2026 12:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	17-07-2026 12:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Finance
विभाग का नाम/Department Name	Department Of Revenue
संगठन का नाम/Organisation Name	Central Board Of Direct Taxes (cbdt)
कार्यालय का नाम/Office Name	Ahm1
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :pao18.cbdtc.gj@gembuyer.in Buyer Email id: ahmedabad.ddo.pcit3.au.reac@incometax.gov.in
वस्तु श्रेणी /Item Category	Monthly Basis Cab & Taxi Hiring Services - Sedan; 2000 km x 320 hours; Local 24*7 , Monthly Basis Cab & Taxi Hiring Services - SUV; 2000 km x 320 hours; Local 24*7
अनुबंध अवधि /Contract Period	1 Year(s)
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	100 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	5 Year (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Bidder Turnover,Certificate (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई अनुपालन/MII Compliance

एमआईआई अनुपालन/MII Compliance	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
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सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य L1+X% / Purchase Preference to MSE OEMs/ Service Provider available upto price within L1+X%	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.

3. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

Fleet of owned vehicles with service provider, (Please limit the number to up to 100% of the vehicles demanded or 30 whichever is lesser):30

Drivers on Payroll (in Numbers) (Please limit the number to up to 100% of the vehicles demanded or 30 whichever is lesser):30

Minimum years (up to 5 years) of experience in related field:5

Number (upto 100%) of vehicles demanded should have been provided in a single contract to a government agency in the past three years:50

Number (up to 100%) of vehicles demanded should have been provided in the past 1 year to government agencies:50

Geographic Presence in States:Ahmedabad & Gandhinagar Districts of Gujarat

Scope of Work:[1783401401.pdf](#)

Monthly Basis Cab & Taxi Hiring Services - Sedan; 2000 Km X 320 Hours; Local 24*7 (

1)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Vehicle Type	Sedan
Type of car (Please select at least 3 options)	Maruti Suzuki Celerio , Maruti Suzuki Dzire
Usage Variant	2000 km x 320 hours
Type of Service	Local 24*7
Year of Vehicle Model	2024 , 2025 , 2026
Km Travelled	Upto 25,000 Kms
Air Conditioning Requirement	A/C
Area of Operation	Plains
Fuel Type	Petrol
एडऑन /Addon(s)	

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Number of Vehicles Required	अतिरिक्त आवश्यकता /Additional Requirement
1	Solanki Sureshbhai	380015,C-310, 3rd Floor, Pratyaksh Kar Bhavan, Ambawadi, Panjarapol, Ahmedabad	1	Duration in Months for which service is required : 12

Monthly Basis Cab & Taxi Hiring Services - SUV; 2000 Km X 320 Hours; Local 24*7 (7)

तकनीकी विशिष्टियाँ /Technical Specifications

विवरण/ Specification	मूल्य/ Values
कोर / Core	
Vehicle Type	SUV
Type of car (Please select at least 3 options)	Maruti Suzuki Ertiga , Mahindra XUV 500 , Maruti Suzuki XL6
Usage Variant	2000 km x 320 hours
Type of Service	Local 24*7

विवरण/ Specification	मूल्य/ Values
Year of Vehicle Model	2024 , 2025 , 2026
Km Travelled	Upto 25,000 Kms
Air Conditioning Requirement	A/C
Area of Operation	Plains
Fuel Type	Petrol
एडऑन /Addon(s)	

अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	संसाधनों की मात्रा / Number of Vehicles Required	अतिरिक्त आवश्यकता /Additional Requirement
1	Solanki Sureshbhai	380015,C-310, 3rd Floor, Pratyaksh Kar Bhavan, Ambawadi, Panjarapol, Ahmedabad	7	Duration in Months for which service is required : 12

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Service & Support

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

2. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

3. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

4. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Additional Terms & Conditions

1) The vehicles should be running on **Petrol or Diesel only** and in excellent condition. An undertaking needs to be submitted, if, the bidder has any factory fitted Petrol/CNG vehicles stating that the

vehicles will be run only on Fuel type Petrol. The color of the cars will be white. They should have been manufactured on or after 01/01/2024 and should not have run for more than 25,000 kms. All the vehicles must have valid taxi permit to run in the territory of Gujarat.

2) Head Office/Principal place of business of Service provider must be located in Ahmedabad or Gandhinagar, Gujarat. If the head office of the Service provider is not located in Ahmedabad or Gandhinagar, Gujarat, the bidder will not be selected in technical evaluation and for further processing. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

3) The bid value should not surpass **Rs.52,500/- per month per vehicle for 7 mid-sized & SUVs and Rs.42,000/- per month per vehicle for 1 small sized vehicle (inclusive of GST)** leading to an aggregate of **Rs.49,14,000/- for total of 8 vehicles for one year (inclusive of GST)**.

For Petrol/Diesel Vehicles:

S. No.	Type of Vehicle	Revised cost ceiling (Exclusive of taxes) (In Rs.)
1	Small sized	40,000/- per month
2	Mid-sized and SUV vehicles	50,000/- per month

4) The vehicles should be for the exclusive use of the Income Tax Department 24X7 during the period of contract. The Department shall not allow use of the hired vehicles, by the Vendor, for any other purpose.

5) All expenses relating to salary and allowances of the driver, over time payment, maintenance of vehicles, insurance, petrol/diesel, oil or and other expenditure related to the vehicle and the driver will be borne by the Vendor.

6) All legal obligations in respect of the vehicles, i.e. Road Tax, RTO registration and permissions etc. and in respect of the driver, i.e. minimum wages as per Govt. Regulation, social security etc. will be the responsibility of the vendor.

7) The vehicle shall always be kept neat and clean and in perfect running condition. The seat covers, window curtains (on demand) and partition curtain shall also be provided by the Vendor. The Air Conditioner installed in the vehicle must work satisfactorily all the time. The vehicle must be sanitized regularly which shall be the responsibility of the vendor.

8) The Department shall not make any payment other than the agreed Hire Charges. No increase in hire charges shall be considered during the period of contract for any reason. Further, the payment of kilometers over and above 2000 base Kilometers would not be made on monthly basis. The setoff of additional kilometers during the period of contract against the unutilized base kilometers would be considered in the last month of the contract i.e. payment if any on kilometers over and above 24000 (2000x12) would be done in the last month of contract.

9) In the event of breakdown of vehicle, or absence of driver, the vendor shall provide a substitute vehicle/driver, immediately. In case vehicle does not report on time/does not report at all, the Department would have a right to hire a vehicle from the market & the additional cost incurred by the Department will be borne/reimbursed by the vendor, or deducted from his monthly bill.

10) The drivers deployed by the vendor should fulfill following condition:

- i. The drivers should have valid taxi driving licenses with minimum experience of three (3) years driving of the cars.
- ii. Driver should wear the prescribed uniform as well as Identity Card while on duty. Color of uniform shall be decided by the department.
- iii. The driver on a particular vehicle should not be frequently changed by the vendor unless asked to do so.
- iv. Driver on duty should be provided with mobile phone for easy communication. The expenses for mobiles shall not be borne by the Department.
- v. Driver should be decent and well behaved and observe etiquette and decorum all the time. The driver should not have criminal antecedents and it shall be responsibility of the vendor to verify his background before deployment and to get the police verification conducted. The conduct of the driver will be sole responsibility of the vendor and in this regard, department shall not be responsible in any manner, whatsoever.
- vi. The vendor shall be responsible for the loss/theft/misplacement of articles kept by the user in the vehicle.

11) The contractor shall submit copies of the Registration Certificate and insurance policies of the vehicles being offered for the hire and particulars of the drivers with photograph.

12) The vendor shall be required to produce the vehicles in the office for the physical verification/inspection before deployment and shall not change the same.

13) In case condition of vehicle/vehicles produced, is not found to be satisfactory, it shall be returned for immediate replacement. In case no replacement is provided on specified time, this office would have a right to hire vehicles from the market and the additional cost incurred by this office will be borne by the vendor.

14) The vendor and the drivers shall be bound to carry out the instructions of the Department as well as the Officers who are using the vehicles.

15) The Contractor will be responsible for any loss/damages/claim arising out of any accident. The Contractor will be responsible for any loss/damage to property because of negligence of driver, or poor maintenance of vehicle, or due to an accident. The Department will not be responsible for any such loss.

16) A daily record indicating time and mileage for each vehicle shall be maintained in a log book and

shown to the officer (or any person designated by him) every day and initial obtained.

- 17) The kilometers entry in the Log Book maintained for every vehicle should start from the place of pick-up and drop of the officer and this alone (and not any dead mileage) will form part of kilometers run for the purpose of this Contracts.
- 18) TDS will be deducted from the payment due to the vendor as per the Income-tax Act.
- 19) GST will be deducted from the payment due to the vendor as per the Service-tax Act.
- 20) The Contract for a vehicle can be terminated at any time after giving one month notice without assigning any reason by the Department, and two months' notice by the vendor.
- 21) The Vendor shall provide separate dedicated vehicle and driver for each officer. Any change in vehicle and/or driver should be made only in exceptional circumstances and with the prior permission of the concerned officer.
- 22) The Vendor should ensure payment of wages, as per Minimum Wages Act, to the drivers deployed by them. Department may call for the wages or salary register/vouchers for verification, as and when required in order to ensure payment of correct wages as per law.
- 23) The vendor should have been registered with the authority concerned of State or Central Government. He is also required to fulfill the conditions prescribed in Section 66 of Motor Vehicle Act for hiring vehicles.
- 24) No other person except the vendor's authorized representative/ driver shall be allowed to enter the office premises.
- 25) Within the office premises, the vendor's personnel/ driver shall not do any private work other than assigned duties.
- 26) The Service Provider must have paid GST for the previous quarter. Kindly submit the relevant proof for verification.
- 27) The vendor shall ensure that peace and order is maintained in the office premises by his employees.
- 28) The vendor or his representative would ensure that all this personnel/ driver would behave courteously with the Officers/ Officials of the Income Tax Department and also ensure good manner. Punctuality must be observed strictly by all the drivers deputed.

29) In case any additional requirement of vehicles arises, the vendor shall be liable to provide extra vehicles along with drivers within a notice of 24 hours and the above terms and conditions shall apply in respect of the extra vehicle so provided. The payment for such vehicles shall be on pro-rata basis of the total amount payable as per contract.

30) **PENALTIES:-** The default and the consequential penalties will be applicable as below:

Sr. No.	Nature of Defaults	Penalty Rs
1	Late Reporting	Rs. 500/- per day
2	Non-reporting and refusal of duties	
	1st Instance	Cost as borne by office of PCIT(AU)-3, A'bad
	2nd Instance	Rs. 1000/- per day + 100% of proportionate contract charges
	3rd Instance	Rs. 1500/- per day + 100% of proportionate contract charges per day
3	Poor Maintenance of Vehicles	Rs. 2000/- per month
4	Non observation of dress code	Rs. 100/- for first instance and Rs. 200/- for subsequent instances
5	Changes of drivers without permission	Rs. 1000/- per instance
6	Vehicle kept unclean	Rs. 500/- per day
7	Unsafe/ Rash Driving	Rs. 500/- per instance
8	Stoppage of Vehicle due to insufficiency of Fuel	Rs. 200/- per instance
9	Breakdown of vehicle more than once a month	Rs. 200/- per instance

5. Service & Support

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

6. Service & Support

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

7. Generic

OPTION CLAUSE 50% : The buyer can increase or decrease the contract quantity or contract duration up to 50 percent at the time of issue of the contract. However, once the contract is issued, the contract quantity or contract duration can only be increased up to 50 percent. Bidders are bound to accept the revised quantity or duration.

For lumpsum-based service contracts, the buyer may increase the scope of work and contract value up to 50 percent with the consent of the service provider

8. Payment

PAYMENT OF SALARIES AND WAGES: Service Provider is required to pay Salaries / wages of contracted staff deployed at buyer location first i.e. on their own and then claim payment from Buyer alongwith all statutory documents like, PF, ESIC etc. as well as the bank statement of payment done to staff.

9. Past Project Experience

Proof for Past Experience and Project Experience clause: For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.**Proof for Past Experience and Project Experience clause:** For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria:a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed.b. Execution certificate by client with contract value.c. Any other document in support of contract execution like Third Party Inspection release note, etc.

10. Generic

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

O/o PCIT (AU)-3, Ahmedabad
3rd Floor, Pratyakash Kar Bhavan
Panajrapol, Ambawadi
Ahmedabad
Gujarat
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11. Generic

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid.All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM.If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.

6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition

specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---